

Court No. - 7

Case :- CONTEMPT APPLICATION (CIVIL) No. - 3996 of 2021

Applicant :- Hanuman Singh

Opposite Party :- Sri Megh Singh, Executive Engineer

Counsel for Applicant :- Dharendra Kumar Srivastava

Hon'ble Ajit Kumar,J.

Heard learned counsel for the applicant and perused the record.

By means of this contempt application filed under Section 12 of the Contempt of Courts Act, 1971 non-compliance of the order dated 22.08.2019 passed by writ Court in Writ- C No.- 20279 of 2019 is complained of.

It is argued by the learned counsel for the applicant that in spite of service of the order of this Court duly effected upon the sole opposite party vide registered post dated 01.10.2019 and several reminders made in the past in respect thereof, the opposite party has failed to comply with the order of this Court till date. Vide paragraph 21 of the affidavit filed in support of the contempt application it is also alleged that there is deliberate attempt to flout the directions contained in the order of the writ court.

It is thus submitted that opposite party should be proceeded with and prosecuted for contempt of this court under section 12 of the Contempt of Courts Act, 1971.

Upon perusal of the order of the writ Court and mandate contained therein, the service of the order as shown to be effected upon the opposite party and so also the reminders made in respect thereof and further the pleadings raised in the affidavit filed in support of this application, I, *prima facie*, find merit in the submission made by learned counsel for the applicant.

Issue notice to the sole opposite party fixing 11.11.2021.

However, since the entire State of U.P. was got badly hit by the surge of second wave of pandemic of Covid-19 resulting in the suspension of public movement and lock-down adversely affecting both judicial and administrative work in the State, it would be appropriate that one more opportunity is accorded to the opposite party to comply with the order and submit the compliance report to this Court on or before the next date fixed.

Accordingly, sole opposite party is directed to comply with the order of this Court dated 22.08.2019 passed by writ Court in Writ- C No.- 20279 of 2019 positively within a period of 4

weeks from the date of service of this order upon him by the applicant who is directed to serve copy of this order upon opposite party within two weeks from today.

Applicant is also directed to cooperate with the opposite party in furnishing such information as the authority concerned may require in making effective and substantial compliance of the order of this Court.

It is made clear that in case if on or before the next date the compliance affidavit is not filed, sole opposite party shall appear in person before this Court on the next date fixed.

List this matter on 11.11.2021.

Order Date :- 30.9.2021

IrfanUddin

Court No. - 10

Case :- CONTEMPT APPLICATION (CIVIL) No. - 3996 of 2021

Applicant :- Hanuman Singh

Opposite Party :- Sri Megh Singh, Executive Engineer

Counsel for Applicant :- Dharendra Kumar Srivastava

Counsel for Opposite Party :- Paras Nath Rai

Hon'ble Prakash Padia,J.

Heard learned counsel for the applicant and Sri P. N. Rai, learned counsel for the opposite party.

The applicant is before this Court for a direction to initiate contempt proceeding against the opposite party for wilful disobedience of the judgement and order dated 22.08.2019 passed in Writ Petition No.20279 of 2019 (Hanuman Singh Vs. State of U.P. and 3 others). The order dated 22.08.2019 is reproduced hereinbelow :-

"Heard Sri Suresh Singh, learned counsel for the petitioner, Sri Mahboob Ahmad, learned counsel for respondent nos. 2,3 and 4 and learned Standing Counsel for the State respondents.

By means of present writ petition, the petitioner has prayed for a writ of mandamus directing respondent no. 2 to 4 to correct the petitioner's electricity bill and restore the electricity connection of the petitioner.

Sri Mahboob Ahmad, Advocate appearing on behalf of the respondent nos. 2,3 and 4 has placed reliance before this Court upon the corrected bill given by the department and which has been received on 1.6.2019 by the petitioner himself. From the perusal of the record , we find that the said bill has been annexed alongwith writ petition at page 46 of the paper book.

Learned counsel for the respondent further submits that the petitioner has remedy to approach the higher authority against the corrected bill under the provision as contained vide clause 7.10 of the U.P. Electricity Supply Code, 2005.

To the above legal argument advanced by learned counsel for the respondent, learned counsel for the petitioner does not dispute.

In such view of the matter, writ petition is accordingly disposed of with direction that in case petitioner approaches before the higher authority under the aforesaid provision, the authority shall consider the same

and pass appropriate order by means of reasoned and speaking order within period of four weeks from the date of production of certified copy of this order."

On 30.09.2021 following order was passed by this Court :-

"Heard learned counsel for the applicant and perused the record.

By means of this contempt application filed under Section 12 of the Contempt of Courts Act, 1971 non-compliance of the order dated 22.08.2019 passed by writ Court in Writ- C No.- 20279 of 2019 is complained of.

It is argued by the learned counsel for the applicant that in spite of service of the order of this Court duly effected upon the sole opposite party vide registered post dated 01.10.2019 and several reminders made in the past in respect thereof, the opposite party has failed to comply with the order of this Court till date. Vide paragraph 21 of the affidavit filed in support of the contempt application it is also alleged that there is deliberate attempt to flout the directions contained in the order of the writ court.

It is thus submitted that opposite party should be proceeded with and prosecuted for contempt of this court under section 12 of the Contempt of Courts Act, 1971.

Upon perusal of the order of the writ Court and mandate contained therein, the service of the order as shown to be effected upon the opposite party and so also the reminders made in respect thereof and further the pleadings raised in the affidavit filed in support of this application, I, prima facie, find merit in the submission made by learned counsel for the applicant.

Issue notice to the sole opposite party fixing 11.11.2021.

However, since the entire State of U.P. was got badly hit by the surge of second wave of pandemic of Covid-19 resulting in the suspension of public movement and lock-down adversely affecting both judicial and administrative work in the State, it would be appropriate that one more opportunity is accorded

to the opposite party to comply with the order and submit the compliance report to this Court on or before the next date fixed.

Accordingly, sole opposite party is directed to comply with the order of this Court dated 22.08.2019 passed by writ Court in Writ- C No.- 20279 of 2019 positively within a period of 4 weeks from the date of service of this order upon him by the applicant who is directed to serve copy of this order upon opposite party within two weeks from today.

Applicant is also directed to cooperate with the opposite party in furnishing such information as the authority concerned may require in making effective and substantial compliance of the order of this Court.

It is made clear that in case if on or before the next date the compliance affidavit is not filed, sole opposite party shall appear in person before this Court on the next date fixed.

List this matter on 11.11.2021."

Today when the matter was taken up, neither the opposite party is present in the Court nor the affidavit of compliance has been filed.

In the circumstances, issue bailable warrant to the opposite party through C.J.M., Fatehpur fixing 01.12.2021.

Put up this matter in the additional cause list on 01.12.2021.

On the said date, opposite party shall remain present in person before this Court.

Copy of this order be communicated by the Registrar (Compliance) before the C.J.M., Fatehpur within three days.

After the aforesaid order was passed while signing the order in Chamber, I have perused the office report dated 10.11.2021, which reads as follows :-

"Pursuant Court order dt. 30/9/2020 it is humbly submitted that Ld. Counsel for the applicant did not supply copy of Contempt appl. (Civil) for issuance of notice to O.P. So office could not issue notice to O.P.

With above submission the case is put up for order."

From perusal of the same, it is clear that no steps whatsoever has been taken by the applicant to serve the opposite party.

In view of the same, the operative portion of the order by which bailable warrant has been issued through C.J.M., Fatehpur is hereby recalled.

List in the next cause list.

Order Date :- 11.11.2021

Pramod Tripathi

Court No. - 9

Case :- CONTEMPT APPLICATION (CIVIL) No. - 3996 of 2021

Applicant :- Hanuman Singh

Opposite Party :- Sri Megh Singh, Executive Engineer

Counsel for Applicant :- Dharendra Kumar Srivastava, Suresh Singh

Counsel for Opposite Party :- Paras Nath Rai

Hon'ble Rohit Ranjan Agarwal, J.

The writ Court on 22.08.2019 while disposing off Writ-C No. 20279 of 2019 passed the following order;

"Heard Sri Suresh Singh, learned counsel for the petitioner, Sri Mahboob Ahmad, learned counsel for respondent nos. 2,3 and 4 and learned Standing Counsel for the State respondents.

By means of present writ petition, the petitioner has prayed for a writ of mandamus directing respondent no. 2 to 4 to correct the petitioner's electricity bill and restore the electricity connection of the petitioner.

Sri Mahboob Ahmad, Advocate appearing on behalf of the respondent nos. 2,3 and 4 has placed reliance before this Court upon the corrected bill given by the department and which has been received on 1.6.2019 by the petitioner himself. From the perusal of the record, we find that the said bill has been annexed alongwith writ petition at page 46 of the paper book.

Learned counsel for the respondent further submits that the petitioner has remedy to approach the higher authority against the corrected bill under the provision as contained vide clause 7.10 of the U.P. Electricity Supply Code, 2005.

To the above legal argument advanced by learned counsel for the respondent, learned counsel for the petitioner does not dispute.

In such view of the matter, writ petition is accordingly disposed of with direction that in case petitioner approaches before the higher authority under the aforesaid provision, the authority shall consider the same and pass appropriate order by means of reasoned and speaking order within period of four weeks from the date of production of certified copy of this order."

Learned counsel for the opposite party has invited the attention of the Court to paragraph no. 7 of the compliance affidavit which was filed on 16.11.2021 wherein it has been stated that representation of the applicant has been decided on 12.11.2021, copy of which has been brought on record as annexure No. 1 to the compliance

affidavit.

As the order of writ Court was only to the extent to decide the representation of the applicant which the authorities have already done, no case for contempt is made out.

Contempt applicant stands dismissed.

Contempt notice stands discharged.

File consign to record.

Sri Paras Nath Rai, learned counsel, has put in appearance on behalf of opposite party.

Order Date :- 16.11.2023

Shekhar